

Frontier Artificial Intelligence Officer Certification Act

Illinois research draft v0.2 - 21 August 2026

AN ACT concerning business.

Be it enacted by the People of the State of Illinois, represented in the General Assembly:

Section 1. Short title. This Act may be cited as the Frontier Artificial Intelligence Officer Certification Act.

Section 5. The Artificial Intelligence Safety Measures Act is amended by changing Sections 10, 18, and 25 and by adding Section 18.5 as follows:

Existing statutory text is reproduced in full. Proposed new or replacement matter is identified by an [ADDED] label. Legislative Reference Bureau underlining and strike-through would control in an introduced bill.

(430 ILCS 185/10) Section 10. Frontier AI framework

Sec. 10. Frontier AI framework.

(a) Beginning January 1, 2028, a large frontier developer shall write, implement, comply with, and clearly and conspicuously publish on its website a frontier AI framework that applies to the large frontier developer's frontier models and describes how the large frontier developer approaches all of the following:

- (1) incorporating national standards, international standards, and industry-consensus best practices into its frontier AI framework;
- (2) defining and assessing thresholds used by the large frontier developer to identify and assess whether a frontier model has capabilities that could pose a catastrophic risk, which may include multiple-tiered thresholds;
- (3) applying mitigations to address the potential for catastrophic risks based on the results of assessments undertaken pursuant to paragraph (2);
- (4) reviewing assessments and adequacy of mitigations as part of the decision to deploy a frontier model or use it extensively internally;
- (5) using third parties to assess the potential for catastrophic risks and the effectiveness of mitigations of catastrophic risks;
- (6) revisiting and updating the frontier AI framework, including any criteria that trigger updates and how the large frontier developer determines when its frontier models are substantially modified enough to require disclosures pursuant to subsection (c);
- (7) cybersecurity practices to secure unreleased model weights from unauthorized modification or transfer by internal or external parties;
- (8) identifying and responding to critical safety incidents;
- (9) instituting internal governance practices to ensure implementation of these processes; and
- (10) assessing and managing catastrophic risk resulting from the internal use of its frontier models, including risks resulting from a frontier model circumventing oversight mechanisms.

(b)(1) A large frontier developer shall review and, as appropriate, update its frontier AI framework at least once per year.

(2) If a large frontier developer makes a material modification to its frontier AI framework, the large frontier developer shall clearly and conspicuously publish on its website the modified frontier AI framework and a justification for that modification within 30 days.

(c)(1) Before, or concurrently with, deploying a new frontier model or a substantially modified version of an existing frontier model, a frontier developer shall clearly and conspicuously publish on its website a transparency report containing all of the following:

- (A) the website of the frontier developer;
 - (B) a mechanism that enables a natural person to communicate with the frontier developer;
 - (C) the release date of the frontier model;
 - (D) the languages supported by the frontier model;
 - (E) the modalities of output supported by the frontier model;
 - (F) the intended uses of the frontier model; and
 - (G) any generally applicable restrictions or conditions on uses of the frontier model.
- (2) Before, or concurrently with, deploying a new frontier model or a substantially modified version of an existing frontier model, a large frontier developer shall include in the transparency report required by paragraph (1) of this subsection (c) summaries of all of the following:
- (A) assessments of catastrophic risks from the frontier model conducted pursuant to the large frontier developer's frontier AI framework;
 - (B) the results of the assessments under subparagraph (A);
 - (C) the extent to which third-party evaluators were involved; and
 - (D) other steps taken to fulfill the requirements of the frontier AI framework with respect to the frontier model.
- (3) All summaries required under paragraph (2) shall be provided in a machine-readable format to facilitate verification of model claims.
- (4) A frontier developer that publishes the information described in paragraph (1) or (2) as part of a larger document, including a system card or model card, shall be deemed in compliance with the applicable paragraph.
- (5) A frontier developer is encouraged, but not required, to make disclosures described in this subsection (c) that are consistent with, or superior to, industry best practices.
- (d) Beginning on January 1, 2028 or 90 days after a developer first qualifies as a large frontier developer, whichever is later, a large frontier developer shall annually retain a third party to perform an independent audit of compliance with the requirements of this Section. The third party shall conduct audits consistent with generally accepted auditing standards and best practices and shall possess demonstrated competence to perform the audit, including experience employing or contracting with individuals who possess technical expertise in the safety of frontier models. A large frontier developer shall not retain a third party if either the large frontier developer or the third party has a financial interest in the other party. A large frontier developer may compensate a third party for its services but shall not condition any payment or the amount of any payment on the results of the third party's audit.
- (1) The third party shall be granted access to all materials reasonably necessary to comply with the third party's obligations under this subsection (d), including, but not limited to, all unredacted versions of materials published pursuant to this Act. To protect the frontier developer's trade secrets and confidential business information, cybersecurity, national security of the United States, or public safety, a large frontier developer may impose security protocols on the third party, including, but not limited to, restrictions on note taking, copying, retaining, or removing materials; requirements for on-premise review; and confidentiality requirements.
- (2) The third party shall produce a report that includes all of the following:
- (A) a description of whether the large frontier developer has substantially complied with the requirements of this Section;
 - (B) if applicable, a description of material deviations from the requirements of this Section, an explanation of any deviation and its rationale, and any recommendations for how the developer can improve its policies and processes for ensuring compliance with the requirements of this Section;
 - (C) a detailed assessment of the large frontier developer's internal controls, including its designation and empowerment of senior personnel responsible for such implementation by the large frontier developer, its employees, and its contractors;
 - (D) a list of the personnel involved in the audit;
 - (E) the third party's procedures for managing conflicts of interest and any conflicts of interest of any personnel involved in the audit;

(F) the methodology of the audit and the nature of the information reviewed by the third party to conduct the audit; and

(G) the signature of the lead auditor certifying the results of the audit.

(3) The large frontier developer shall retain an unredacted copy of the report for as long as a frontier model is deployed plus 5 years.

(4)(A) No later than 30 days after receiving the audit report, the large frontier developer shall conspicuously publish on its website a high-level summary of the audit findings and a copy of the third party's report with appropriate redactions and transmit a copy of the redacted report to the Agency and the Attorney General.

(B) The large frontier developer shall grant the Agency and the Attorney General access to the third party's report, with redactions, upon request, subject to the redactions permitted under subsection (g).

(e) A large frontier developer shall transmit to the Agency a summary of any assessment of catastrophic risk resulting from internal use of its frontier models every 3 months or pursuant to another reasonable schedule specified by the large frontier developer and communicated in writing to the Agency and the Attorney General with written updates, as appropriate and agreed upon by the Agency.

(f)(1) A frontier developer shall not make a materially false or misleading statement about catastrophic risk from its frontier models or its management of catastrophic risk.

A large frontier developer shall not make a materially false or misleading statement about its implementation of, or compliance with, its frontier AI framework.

(2) This subsection (f) does not apply to a statement that was made in good faith and was reasonable under the circumstances.

(g)(1) When a frontier developer publishes documents to comply with this Section, the frontier developer may make redactions to those documents that are necessary to protect the frontier developer's trade secrets, the frontier developer's cybersecurity, public safety, or the national security of the United States or to comply with any federal or State law.

(2) If a frontier developer redacts information in a document pursuant to this subsection (g), the frontier developer shall describe the character and justification of the redaction in any published version of the document to the extent permitted by the concerns that justify redaction and shall retain the unredacted information for 5 years.

[ADDED] (h) Officer certification not displaced. Compliance with this Section, including publication of a transparency report under subsection (c), performance of an independent audit under subsection (d), or publication or transmission of an audit report under paragraph (4) of subsection (d), does not dispense with a certification or acknowledgment required by Section 18.5.

(Source: P.A. 104-538, eff. 1-1-27; proposed amendment.)

(430 ILCS 185/18) Section 18. Large frontier developer disclosure

Sec. 18. Large frontier developer disclosure.

(a) Except as otherwise provided in this Section, beginning January 1, 2027, no large frontier developer may develop, deploy, or operate a frontier model, in whole or in part in this State, without having a current disclosure statement filed with the Agency and paying the required disclosure fee in an amount set by rule.

(b) The disclosure statement shall be filed in the form and the manner prescribed by the Agency on the Agency's website and shall contain all the information required by the Agency. It shall be renewed annually, whenever ownership of the frontier model is transferred or whenever there is a material change to the information reported in the previously filed disclosure statement, whichever occurs earlier. Annual disclosure statements and disclosure statement updates are subject to the payment of fees as established by rule.

(c) The disclosure statement shall identify:

(1) the identity of the large frontier developer and all names under which such large frontier developer conducts business;

(2) the address of the principal place of business and the address of each office the large frontier developer maintains in this State;

(3) in the event the large frontier developer or the ultimate parent of the large frontier developer is a privately or closely held company, a list of all persons or entities that beneficially own a 5% or greater interest in the large frontier developer at the time the disclosure statement is filed and a list of persons who formerly beneficially owned a 5% or greater interest in the owner or its predecessors in the preceding 5 years; in the event the owner or the ultimate parent is a publicly traded company, the owner shall file a list of all persons or entities that beneficially own a 50% or greater interest in the large frontier developer at the time of disclosure; and

(4) the name and contact information of a point of contact, secondary contact, and tertiary contact for the large frontier developer; the point of contact shall be responsible for receiving inquiries relating to this Act from the Agency or other governmental entities.

[ADDED] (5) The name, title, and signing capacity of each person who is a required signer under Section 18.5, together with a description sufficient to identify the paragraph of subsection (d) of Section 18.5 under which the person is a required signer. Information supplied under this paragraph shall be updated within 30 days after a person becomes or ceases to be a required signer or after a material change in the person's authority.

(d) Beginning July 1, 2026, the Agency shall charge and collect fees, in an amount set by rule, from large frontier developers for the expenses of administering this Act, which shall be nonrefundable unless otherwise indicated. Each large frontier developer shall pay to the Agency its pro rata share of the cost of administration of this Act, as estimated by the Agency based on criteria established by rule, for the current year and any deficit actually incurred in the administration of the Act in prior years.

(e) If any person develops, deploys, or operates a large frontier model in this State without a current disclosure filed with the Agency as required by this Section, submits false information in its disclosure or fails to timely pay any assessment required by this Act, in addition to any other penalty or liability that may be imposed under this Act, the Agency may, after notice and hearing, levy civil penalties, fees, and costs as follows:

(1) a civil penalty of \$1,000 for each day the person fails to file a disclosure as required by this Section or fails to correct false information to be deposited into the AI Safety Measures Fund; and

(2) an amount equal to the assessments owed to be deposited into the AI Safety Measures Fund.

[ADDED - replacing existing subsection (f)] (f) The Agency shall maintain and publish a searchable list of large frontier developers that have filed disclosure statements. The publication shall not include the contact information set forth in paragraph (4) of subsection (c). For each large frontier developer, the publication shall include:

(1) the name and title of each required signer identified under paragraph (5) of subsection (c);

(2) the signing capacity of each required signer;

(3) the date on which each required signer most recently became or ceased to be a required signer, if applicable; and

(4) for each submission under Section 18.5, the filing date, submission type, covered frontier model or models, and whether the submission was a certification or an acknowledgment.

The Agency shall design the list to permit searches by large frontier developer, frontier model, required signer, submission type, and filing date.

(Source: P.A. 104-466, eff. 1-1-27; 104-538, eff. 1-1-27; proposed amendment.)

(430 ILCS 185/18.5 new) Section 18.5. Officer certification

[ADDED] Sec. 18.5. Officer certification.

(a) Definitions. As used in this Section:

"Required signer" means a natural person required to sign under subsection (d), whether or not a submission required by this Section was made.

"Ultimate controlling affiliate" means an affiliate that, directly or indirectly through one or more persons or arrangements, possesses or exercises ultimate authority to direct the management and policies of a large frontier developer. An affiliate is not an ultimate controlling affiliate solely because it provides goods, services, financing, compute, or infrastructure on ordinary commercial terms without authority to direct the large frontier developer's management or policies.

(b) Deployment submission. Before or concurrently with deploying a new frontier model or a substantially modified version of an existing frontier model, a large frontier developer shall transmit electronically to the Agency and the Attorney General, in a form prescribed by the Agency, either:

(1) a written certification that, after reasonable inquiry:

(A) the transparency report required by subsection (c) of Section 10 is complete and accurate in all material respects;

(B) the assessments, mitigations, third-party evaluations, and other steps required by the large frontier developer's frontier AI framework for the decision to deploy were completed or applied;

(C) the deployment materially complies with the applicable requirements of Section 10 and with the large frontier developer's frontier AI framework; and

(D) no material information known to a required signer, or that would have been disclosed by the inquiry required by subsection (e), has been omitted in a manner that makes the submission materially misleading; or

(2) a written acknowledgment that identifies each material noncompliance, describes its nature and extent, identifies the frontier model and deployment to which it relates, and provides a remediation plan and timeline or confirms that remediation is complete.

An acknowledgment under paragraph (2) does not constitute compliance, validation, authorization to deploy, or a defense to a violation of this Act. A truthful acknowledgment, standing alone, does not establish an individual violation under this Section.

(c) Annual audit response. No later than 30 days after receiving the report of an independent audit required by subsection (d) of Section 10, a large frontier developer shall transmit electronically to the Agency and the Attorney General either:

(1) a written certification that, after reasonable inquiry:

(A) the third party was granted access to all materials reasonably necessary to conduct the audit and no required signer directed or knowingly permitted material interference with the audit;

(B) the high-level summary and redacted report published or transmitted under paragraph (4) of subsection (d) of Section 10 accurately reflect the audit's findings in all material respects, subject only to redactions permitted by subsection (g) of Section 10;

(C) the large frontier developer materially complied during the audit period with the requirements of Section 10 and with its frontier AI framework; and

(D) each material deviation or recommendation identified by the auditor has been remediated, is subject to a stated remediation plan and timeline, or has been identified in the submission; or

(2) a written acknowledgment that identifies each material noncompliance or material unresolved deviation identified by the audit or by the inquiry required under subsection (e), describes its nature and extent, and provides a remediation plan and timeline or confirms that remediation is complete.

The annual audit response shall identify each frontier model deployed or used extensively internally by the large frontier developer during the audit period. The response is a management submission and shall not modify, supersede, or be represented as the independent auditor's report.

(d) Required signers. Each certification or acknowledgment submitted under subsection (b) or (c) shall be signed personally by all of the following:

(1) the highest-ranking natural-person executive of the large frontier developer or, if the large frontier developer has no such executive, each natural person exercising the most senior executive or governance authority over the large frontier developer;

(2) if an ultimate controlling affiliate exists, the highest-ranking natural-person executive of that affiliate or, if the affiliate has no such executive, each natural person exercising the most senior executive or governance authority over that affiliate;

(3) the most senior natural-person officer, other than a signer required by paragraph (1) or (2), who has direct responsibility for implementation of the large frontier developer's frontier AI framework and authority to prevent the deployment or extensive internal use of a frontier model that does not comply with the framework; and

(4) each natural person, other than a signer required by paragraph (1), (2), or (3), who, regardless of title, possesses or exercises final material decision authority concerning the deployment or extensive internal use of a frontier model of the large frontier developer through one or more of the following:

- (A) deployment, expansion, release, access, or operational decisions;
- (B) budgets, compute, infrastructure, or risk policy materially affecting the deployment or use;
- (C) appointment, removal, direction, or supervision of persons exercising authority described in subparagraph (A) or (B); or
- (D) ownership, voting, contractual, governance, trust, or other rights conferring practical power to prevent, halt, restrict, or correct the deployment or use.

Authority under paragraph (4) may be held or exercised directly or indirectly, individually or in concert with others, and through an affiliate, entity, trust, or arrangement. The following, standing alone or in combination only with each other, do not constitute authority under paragraph (4): title, office, seniority, or status; professional credentials or technical ability; access to systems, model weights, compute, or infrastructure; ministerial execution, implementation, or communication of a decision made by another; or the provision of advice, analysis, or a recommendation to a person holding decision authority. Authority under paragraph (4) is authority to decide, not merely capacity to act. Substance controls over title.

If 2 or more natural persons jointly occupy or exercise the rank or authority described in paragraph (1), (2), or (3), each such person is a required signer. No large frontier developer or affiliate may, through a vacancy, allocation of authority among multiple persons, use of a board or committee, or other form of organization, leave this Section without an obligated natural person.

Each required signer shall sign in an individual capacity. A signature by an entity, board, committee, representative, delegate, or artificial intelligence system does not satisfy this subsection. Appointment of a safety officer, compliance officer, committee, subsidiary, contractor, artificial intelligence system, or other intermediary does not relieve a required signer who retains authority material to a duty imposed by this Section.

(e) Personal duty of inquiry and response.

(1) Before signing a certification or acknowledgment, each required signer shall exercise due care to ensure that a reasonable inquiry has been conducted. The inquiry shall be based on data and documentation sufficient to determine accurately and demonstrate the matters addressed by the submission.

(2) Employees, advisers, independent auditors, and qualified experts may perform work supporting the inquiry. A required signer may rely on their information only when the reliance is reasonable under the circumstances and the signer has no reason to believe that the information is materially false or incomplete. Delegation of supporting work does not relieve a required signer of the personal duty imposed by this subsection.

(3) When material noncompliance is identified, or would have been identified through an inquiry satisfying paragraph (1), each required signer shall exercise due care, using meaningful measures within that signer's authority, individually or in combination with others, to cause prompt remediation and to prevent, halt, or restrict deployment or extensive internal use when its continuation would violate this Act or the large frontier developer's frontier AI framework.

(4) Lack of actual knowledge is not a defense to a violation of this subsection when the relevant facts would have been disclosed by the reasonable inquiry required by paragraph (1) or by reporting and escalation systems that due care required the signer to establish or maintain. A required signer may not avoid a duty imposed by this Section through delegation, deliberate avoidance of material information, or failure to establish reasonable means by which such information would reach the signer.

(f) Form, notice, and filing.

(1) Each certification or acknowledgment shall identify each required signer by name, title, and signing capacity and shall bear the following notice immediately above each signature:

> I sign in my individual capacity. After reasonable inquiry, the statements > made in this submission are true, accurate, and complete in all material > respects to the best of my knowledge, information, and belief. I understand > that the Artificial Intelligence Safety Measures Act imposes personal duties > and authorizes individual civil penalties for a material false statement or a > failure to exercise due care in performing those duties.

(2) A required signer shall not add a qualification, disclaimer, reservation, or limitation that is inconsistent with the notice required by paragraph (1). An electronic signature attributable to the required signer may satisfy this

subsection. A signature affixed by a representative, delegate, or automated system may not satisfy this subsection.

(3) The Agency shall prescribe forms and electronic procedures necessary to implement this Section. A form or procedure may not dispense with a required signer, diminish a personal duty imposed by this Section, or convert an acknowledgment into authorization to deploy.

(g) Existing frontier models. No later than 180 days after the effective date of this amendatory Act, each large frontier developer that has a frontier model deployed, operated, or used extensively internally, in whole or in part in this State, shall submit for each such model the certification or acknowledgment required by subsection (b). Continued deployment, operation, or extensive internal use after that date is treated prospectively as a deployment for purposes of this Section. No liability arises under this subsection solely from conduct occurring before the effective date of this amendatory Act.

(h) Supporting records.

(1) A large frontier developer shall preserve all data, reports, assessments, communications, schedules, and other documentation materially relied upon in preparing a certification or acknowledgment until the later of:

(A) 5 years after the submission; or

(B) 5 years after the relevant frontier model was last deployed, operated, or used extensively internally in this State.

(2) The large frontier developer shall preserve for the same period records sufficient to identify each required signer and the basis on which the person was or was not treated as a required signer, including organizational charts, delegations of authority, board or committee resolutions, and voting, contractual, governance, or trust arrangements materially relevant to authority described in subsection (d).

(3) From the time a large frontier developer or required signer has notice of a critical safety incident, investigation, lawful preservation demand, or judicial or administrative proceeding to which a record described in this subsection is reasonably relevant, the record shall be preserved until final conclusion of the incident response, investigation, demand, or proceeding, including review or appeal, notwithstanding expiration of another retention period.

(4) Records required by this subsection shall be made available to the Agency or the Attorney General upon lawful request. This subsection does not require public disclosure of records protected under Section 15 or another applicable law.

(i) Public officer-signature register.

(1) Each certification or acknowledgment is a public record. A large frontier developer may redact from the public copy only information for which redaction is necessary to protect trade secrets, cybersecurity, public safety, the national security of the United States, or another interest protected from disclosure by law. The unredacted submission shall be transmitted to the Agency and the Attorney General.

(2) The Agency shall not redact the identity of the large frontier developer; the name or version of a frontier model to which the submission relates; the reporting or audit period; whether the submission is a certification or acknowledgment; the filing date; or a required signer's name, title, signing capacity, attestation, and signature or electronic equivalent.

(3) Within 10 business days after receiving a submission, the Agency shall publish the public copy and enter the information required by subsection (f) of Section 18 in the searchable public register.

(j) Federal interoperability. A declaration or deemed compliance under Section 17 does not dispense with a submission, signature, personal duty, or public-register entry required by this Section. Materials prepared to comply with a federal law, regulation, or guidance document designated under Section 17 may be incorporated into a certification or acknowledgment to the extent the materials address the same matter.

(k) Individual enforcement.

(1) The Attorney General may bring a civil action against a required signer who violates a duty imposed on that signer by this Section. The Attorney General has exclusive authority to bring an action under this subsection. Nothing in this Section creates a private right of action.

(2) A required signer is not liable under this Section solely because the large frontier developer violated another provision of this Act. To establish a violation of subsection (e), the Attorney General shall prove that the required signer failed to exercise due care in performing a duty within that signer's authority.

(3) A required signer who knowingly makes or signs a materially false or misleading certification or acknowledgment violates this Section. A required signer also violates this Section by knowingly causing a required submission to be omitted or by knowingly concealing that the person is a required signer.

(4) A truthful acknowledgment of noncompliance does not, standing alone, establish personal liability. This paragraph does not limit consideration of the facts disclosed, the signer's conduct, or the signer's compliance with subsection (e).

(5) A court may impose on a required signer found to have violated this Section a civil penalty not exceeding \$250,000 for a first violation and \$1,000,000 for each subsequent violation. In determining the amount, the court shall consider the nature, circumstances, extent, and gravity of the violation; the signer's degree of culpability and practical authority; prior violations; efforts to prevent or remediate the violation; and the signer's ability to pay.

(6) A penalty imposed on a required signer is separate from, and may not satisfy or reduce, a penalty imposed on a large frontier developer.

(l) Personal payment; no indemnification.

(1) A civil penalty imposed on a required signer under subsection (k) shall be paid by that signer personally. No large frontier developer, affiliate, insurer, employer, or other person may directly or indirectly pay, reimburse, indemnify, insure, or otherwise satisfy any part of the penalty.

(2) No person may provide, and no required signer may solicit, accept, or retain, an increase in compensation, bonus, loan, forgiveness of indebtedness, distribution, gift, or other transfer of value whose purpose or predominant effect is to offset a penalty described in paragraph (1).

(3) An agreement or arrangement contrary to this subsection is void and unenforceable. The Attorney General may recover a prohibited payment or transfer from the person providing it or the required signer receiving it. The recovery does not reduce or satisfy the required signer's underlying penalty.

(4) This subsection does not prohibit payment or advancement of reasonable costs of defense. It does not prohibit indemnification of a person on whom no individual penalty is finally imposed.

(5) This subsection applies only to a penalty imposed for conduct occurring on or after the effective date of this amendatory Act.

(6) No liability arises under this subsection solely from entering into an insurance contract or other indemnification arrangement before the effective date of this amendatory Act or maintaining the contract or arrangement during the transition period described in this paragraph. The contract or arrangement may be maintained only until the earliest of its renewal, expiration, material amendment, or one year after the effective date of this amendatory Act. This paragraph does not authorize any payment, reimbursement, indemnification, insurance benefit, compensation adjustment, or other transfer of value to satisfy or offset a penalty imposed for conduct occurring on or after the effective date of this amendatory Act.

(m) Injunctive relief and disqualification.

(1) In an action under subsection (k), the court may grant appropriate injunctive or equitable relief, including requiring a compliant submission, requiring remediation of an identified violation, or restraining deployment, operation, or extensive internal use of a frontier model in this State until the requirements of this Section are satisfied.

(2) Upon finding that a required signer knowingly violated this Section or committed 2 or more violations within 5 years, the court may prohibit that person, for a period not exceeding 5 years, from serving in an office or exercising authority that would make the person a required signer for a large frontier developer.

(3) A large frontier developer may not develop, deploy, operate, or use extensively internally a frontier model in this State while a person subject to an order under paragraph (2) continues to hold an office or exercise authority that would make the person a required signer.

(4) Before ordering disqualification, the court shall consider the gravity and duration of the violation, the person's degree of culpability and practical authority, efforts to remediate the violation, the likelihood of recurrence, and whether lesser relief would adequately protect the public.

(430 ILCS 185/25) Section 25. Civil penalty

Sec. 25. Civil penalty.

[ADDED - replacing existing subsection (a)] (a) A large frontier developer that fails to publish or transmit a compliant document required to be published or transmitted under this Act, makes a statement in violation of subsection (f) of Section 10, fails to have a third party perform an independent audit of compliance as required by subsection (d) of Section 10, fails to report a critical safety incident as required by Section 15, fails to submit a certification or acknowledgment required by Section 18.5, otherwise violates a duty imposed on the large frontier developer by Section 18.5, or fails to comply with its own frontier AI framework shall be subject to a civil penalty in an amount dependent upon the severity of the violation that does not exceed \$1,000,000 for the first violation. For a subsequent violation, the civil penalty may not exceed \$3,000,000 per violation.

[ADDED - replacing existing subsection (b)] (b) A civil penalty described in this Section or in subsection (k) of Section 18.5 shall be recovered in a civil action brought exclusively by the Attorney General. Any civil penalties collected from the enforcement of this Act shall be deposited into the Attorney General Court Ordered and Voluntary Compliance Payment Projects Fund or as directed by the Attorney General or the courts.

(c) The loss of value of equity does not count as damage to or loss of property for the purposes of this Act.

(d) Nothing in this Act shall be construed to establish a private right of action associated with violations of this Act.

(Source: P.A. 104-466, eff. 1-1-27; 104-538, eff. 1-1-27; proposed amendment.)

Section 10. Severability. The provisions of this Act are severable under Section 1.31 of the Statute on Statutes.

Section 99. Effective date. This Act takes effect 180 days after becoming law, except that the Agency may adopt rules and prepare forms necessary to implement this Act beginning on the date this Act becomes law.

Drafting note

This document is a public-domain research draft, not an official Illinois bill print. Sections amended by the proposal are reproduced at length from the consolidated text of 430 ILCS 185 as retrieved on 21 August 2026. Legislative Reference Bureau review would still be required to conform underlining, strike-through, line numbering, cross-references, codification, and effective-date language. Public Acts 104-466 and 104-538 and any later enacted amendments control.